No. 16-16663

IN THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

Manuel de Jesus Ortega Melendres, *et al.*,
Plaintiffs/Appellees,

v.

United States of America,
Intervenor-Plaintiff-Appellee,

v.

Gerard A. Sheridan and Joseph Sousa,
Defendants/Appellants.

On Appeal from the United States District Court for the District of Arizona
D.C. No. 2:07-cv-02513-GMS

MOTION TO DISMISS APPEAL

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Representation of Joseph Sousa has now passed to the undersigned and is now separate and apart from the representation of his former co-Appellant Gerald Sheridan.

Having reviewed the papers and having discussed the matter with counsel for the Plaintiffs and also with the Department of Justice Civil Rights Division, it has been agreed that Mr. Sousa shall dismiss his appeal and that the Appellees shall not seek costs or fees against Mr. Sousa arising from the appeal.

This Motion is made pursuant FRAP 42(b) which permits dismissal of an appeal by motion of the appellant "on terms agreed to by the parties." Plaintiff's counsel has specifically authorized the filing of this Motion.

Respectfully submitted,

s/ Stephen M. Dichter
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May 23, 2017

CERTIFICATE OF COMPLIANCE

1. This document complies with the word limit of Fed. R. App. P. 27(d)(2)(A) because, excluding the parts of the document exempted by Fed. R. App. P. 32(f), this document contains 112 words.

2. This document complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because this document has been prepared in a proportionally spaced typeface in 14-point Times New Roman.

s/ Stephen M. Dichter	May 23, 2017
Signature	Date

CERTIFICATE OF SERVICE

9th Cir. Case Number(s) 16-16663

I hereby certify that I electronically filed the foregoing/attached document(s) on this date with the Clerk of the Court for the United States Court of Appeals for the Ninth Circuit using the Appellate Electronic Filing system.

Description of Document(s) (required for all documents):

Motion to Dismiss Appeal

s/ Stephen M. Dichter	May 23, 2017
Signature	Date